

Court No. - 37

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Ashok Bhushan, J.

Hon'ble Manoj Kumar Gupta, J.

Sri Mahboob Ahmad learned counsel for the respondents is allowed two weeks' time to file counter affidavit. Rejoinder affidavit may be filed within one week thereafter. List on 30.7.2013.

Order Date :- 8.7.2013

LA/-

Court No. - 37

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

As prayed, ten days' further time is allowed to file counter affidavit.

List on 14.8.2013.

Order Date :- 30.7.2013

P.P.

Court No. - 37

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Ashok Bhushan, J.

Hon'ble Vipin Sinha, J.

Sri Mahboob Ahmad, learned counsel appearing for the respondent has sent his illness slip today.

The case is passed over for the day.

List in the next cause list.

Order Date :- 4.12.2013

Anand

Court No. - 39

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

Cause list has been revised. None appears on behalf of either of the parties.

The writ petition is, therefore, adjourned.

Order Date :- 28.5.2014

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Court No. - 39

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Case called out in the revised list. None appeared on behalf of the petitioner to press the writ petition.

Accordingly, the writ petition is dismissed in default. Interim order, if any, shall stand discharged.

Order Date :- 4.7.2014

Ashok Kr.

Court No. - 39

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Tarun Agarwala, J.

Hon'ble Shri Narayan Shukla, J.

As prayed list in the next cause list.

Order Date :- 29.10.2014

A. K. Singh

(Shri Narayan Shukla, J.) (Tarun Agarwala, J.)

Court No. - 39

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Tarun Agarwala, J.

Hon'ble Shri Narayan Shukla, J.

passed over on the illness of learned counsel for the respondent.

Order Date :- 26.11.2014

A. K. Singh

(Shri Narayan Shukla, J.) (Tarun Agarwala, J.)

Court No. - 39

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Tarun Agarwala, J.

Hon'ble Dr. Satish Chandra, J.

The case is passed over on the illness slip of learned counsel for the petitioner.

Order Date :- 4.12.2014

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(Dr. Satish Chandra, J.) (Tarun Agarwala, J.)

Court No. - 39

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh,Ripu Daman Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Dr. Satish Chandra,J.

The case is passed over on the illness slip of learned counsel for the petitioner.

Order Date :- 12.12.2014

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(Dr. Satish Chandra,J.) (Tarun Agarwala,J.)

Court No. - 32

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Tarun Agarwala, J.

Hon'ble Amar Singh Chauhan, J.

Heard learned counsel for the petitioner.

Counter affidavit filed today, is taken on record.

Cause shown for the absence of the counsel on 4.7.2014 is to the satisfaction of the Court. Application is allowed. Order dismissing the writ petition in default is recalled. Writ petition is restored to its original number.

List in the next cause list.

Order Date :- 18.4.2015

Puspendra

(Amar Singh Chauhan, J.) (Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Tarun Agarwala, J.

Hon'ble Amar Singh Chauhan, J.

The case is passed over on the illness slip of the learned counsel for the respondents.

Order Date :- 1.5.2015

AKJ

(Amar Singh Chauhan, J.) (Tarun Agarwala, J.)

Court No. - 36

Case :- WRIT - C No. - 36217 of 2013

Petitioner :- Chandrawati Singh

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Ashish Singh, Ripu Daman Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Rajes Kumar, J.

Hon'ble Shamsher Bahadur Singh, J.

Heard Sri Ripu Daman Singh, learned counsel for the petitioner and learned Standing Counsel. No one has put in appearance on behalf of respondent nos.2, 3 and 4.

By means of the present writ petition, the petitioner has challenged the testing meter report dated 10.01.2013 and assessment/provisional bill dated 15.04.2013 mainly on the ground that in preparing the testing meter report, mandatory provisions of U.P. State Electricity Supply Code, 2005 have not been followed and, therefore, testing meter report can not be relied upon. Apart from this testing meter report and provisional bill has been challenged on other various grounds as in the writ petition.

Learned counsel for the petitioner submitted that the provisional bill based on such report is also not legally justified.

We are of the view that the grievance of the petitioner can more appropriately be addressed before the respondent no.3.

In view of the above, the writ petition is disposed of asking the petitioner to file representation/objection before the respondent no.3 raising all the objections/grounds of challenge and the respondent no.3 is directed to dispose of the same within another period of four weeks by a reasoned order.

Order Date :- 11.8.2015

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